

Non-Disclosure, Non-Use and Non-Circumvention Agreement

禁止披露/禁止使用/禁止规避协议

This Agreement is made as of the day of (date), between (Company name) (herein "Party A") and Aung Crown Clothing Group Limited (herein "Party B").

The "Project" means and includes the EWAH brand work and the Botswana collection.

本协议于（填写日期）由（客户公司名称）（以下简称“甲方”）与 Aung Crown Clothing Group Limited（以下简称“乙方”）签订。

本协议所称“项目”包括 EWAH 品牌项目及 Botswana collection（博茨瓦纳系列）。

WHEREAS, Party A desires to enter into preliminary discussions with Party B regarding Party B's products and business opportunities (the "Project"), with the possible result of a business relationship between parties. There will be confidential and proprietary information disclosed by Party A to Party B and by the Party B to Party A for evaluation, consideration and discussion by both the Party B and Party A in relation to and in support of the Project.

鉴于，在双方可能会建立的商业关系下，甲方希望与乙方就乙方的产品和商业机会（“项目”）进行初步讨论；甲方将向乙方披露机密和专有信息，乙方也将向甲方披露机密和专有信息，以供甲乙双方就关于该项目进行评估、考虑和讨论，并为该项目提供支持；

WHEREAS, Party B and Party A desire to receive such Confidential and Proprietary Information for this stated purpose from each other.

鉴于，乙方和甲方希望为这一既定目的相互获得此类机密和专有信息；

WHEREAS, the parties desire to maintain the confidential and proprietary nature of their respective information.

鉴于，双方希望保持各自信息的保密性和专有性；

NOW THEREFORE, for good and valuable consideration, the receipt of which is acknowledged by the parties, the parties agree as follows:

据此，基于有效对价及双方认同收讫，现双方达成协议如下：

1. Confidential Information

For purposes of this Agreement, the term "Confidential and Proprietary Information" will mean the following: Strategies, plans, patents, trademarks, trade secrets, copyright materials, designs, drawings, artwork, work in process, marketing, sales, supplier, client, or business information, or the like, whether in oral, written, electronic, or other printed form, that relates in any way to the foregoing that is learned by or disclosed to either party in their dealings with each other.

1. 保密信息

在本协议中，该条款“机密和专有信息”将指以下内容：战略、计划、专利、商标、商业秘密、版权材料、设计、图纸、艺术品、在制品、市场、销售、供应商、客户、商业信息，或类似内容，无论通过与前述内容相关的任何口头、书面、电子或其他印刷形式，使任何一方在双方交易中得知或被披露的。

2. Non-Disclosure, Non-Use, and Non-Circumvention

Except with expressed prior written authorization of the Party A, Party B agrees not to disclose, use or circumvent Party A to disclose or use the Confidential Information. Under any circumstances, Party B shall not file any intellectual property registration application which is originated from Confidential Information disclosed by Party A. Such intellectual property registration including but not limited to patent registration, trademark registration and copyright registration.

2. 禁止披露/禁止使用/禁止规避协议

乙方同意，除非事先取得甲方明确的书面授权，乙方不披露，不使用并且不规避甲方披露或使用的机密信息。在任何情况下，乙方不对源自甲方披露的机密信息进行知识产权申请登记。该知识产权登记包括但不限于专利登记、商标登记和版权登记。

2.1 Nondisclosure of Confidential Information. The parties agree to maintain all information identified orally or marked "Proprietary" or "Confidential" and disclosed by the disclosing party in strict confidence, and not to use any of the information for any purpose other than in support of the Project. The receiving party further agrees not to disclose such information to third parties without the prior written consent of the disclosing party and also agrees not to make copies of any materials provided by the disclosing party except to the limited extent necessary to further the purpose of this Agreement. The parties agree to limit dissemination of the disclosing party's Confidential and Proprietary Information to those of its employees or agents having a need to know the information for the purpose of this Agreement and who are bound by terms of confidentiality commensurate with those of this Agreement.

2.1 机密信息的禁止披露。双方同意对所有口头标识的、标有 "专有 "或 "机密 "（字样）的和由披露方披露的信息进行严格保密，并且不将该信息的任何内容用于支持项目以外的任何目的。接收方还同意，未经披露方事先书面同意，不向第三方披露此类信息，并同意不复制披露方提供的任何材料，但为促进本协议目的所需的有限范围除外。双方同意将披露方的机密和专有信息的传播限制在其员工和代理人为本协议目的而需要了解该信息的（对象），和受到与本协议相称的保密条款的约束的（对象）中。

2.1(a) Exceptions to nondisclosure. Each party's obligations set forth in Paragraph 2 above does not extend to information:

- a) which was already in possession of the receiving party prior to receipt from the disclosing party as evidenced by pre-existing documentation;
- b) which is within the public domain or hereafter enters the public domain through no fault or action or failure to act on the part of the receiving party; or
- c) which is rightfully disclosed to the receiving party by a third party on a non-confidential and non-restricted basis.

2.1(a) **禁止披露的例外情况。**上述第2款规定的每一方的义务并不延伸至（以下）信息：

- a) 在收到披露方提供的信息之前，接收方已经拥有的信息，并有预先存在的文件为证；
- b) 属于公共领域或此后因接收方无过错，无行动或未作为进入公共领域的；或
- c) 由第三方在非保密和非限制的基础上向接收方合法披露的。

2.2 Ownership of Custom Blocks and Restriction on Use. For the avoidance of doubt, any custom block, pattern, grading or related work product specifically developed by Party B for Party A in connection with the Projects, based on or derived from Party B's pre-existing base patterns, together with Party A's measurements, specifications and other project-specific information, shall belong to Party A. Party B retains all rights, title and interest in and to its pre-existing base patterns, grading rules, manufacturing methods, techniques, general know-how and other

materials or intellectual property that existed independently of Party A's project-specific information.

Party B shall not disclose, provide, transfer, reproduce or otherwise make available any such Party A-owned custom block, pattern, grading or related work product to any third-party client or in Party B's own products, samples, catalogue, website, showroom or trade show displays, without Party A's prior written consent.

For the avoidance of doubt, the ownership rights in this Section 2.2 are not subject to the three-year limitation in Section 3 and shall continue indefinitely, unless otherwise agreed by the parties in writing.

2.2 定制版型的所有权及使用限制

为免疑义，乙方就本项目根据乙方既有基础版型，并结合甲方的尺寸、规格及其他项目特定信息，为甲方专门开发的任何定制版型、纸样、放码规则或相关成果，均归甲方所有。乙方保留其在甲方项目特定信息产生之前即已拥有的基础版型、放码规则、生产方法、技术、一般专业知识以及其他材料或知识产权的全部权利、所有权及利益。

未经甲方事先书面同意，乙方不得向任何第三方客户披露、提供、转让、复制或或以其他方式提供任何属于甲方的上述定制版型、纸样、放码规则或相关成果，亦不得将其用于乙方自有产品、样品、目录、网站、展厅或贸易展会展示。

为免疑义，第2.2条项下的所有权不受第3条三年期限限制，并应持续有效，除非双方另有书面约定。

3. Duration

The parties agree that the obligations of each party regarding nondisclosure of Confidential and Proprietary Information under Paragraph 2 shall continue until one of the exceptions identified in Paragraph 2.1(a) applies to that portion of the Confidential and Proprietary Information of a disclosing party or three (3) years from the date of execution hereof.

3. 期限

协议双方同意，第2款规定的各方对机密和专有信息禁止披露的义务，应持续到在第2.1(a)款规定的适用于披露方的机密和专有信息例外情况之一部分出现之前，或从本协议签署之日起三（3）年。

4. Return of Confidential Information

Each party agrees that, upon request of the disclosing party, the receiving party will return or destroy (in the case of electronically stored Information, permanently delete) all embodiments of Confidential and Proprietary Information of the other party as well as all copies (authorized or unauthorized) of such Confidential and Proprietary Information within ten (10) business days of receipt of the request.

4. 机密信息的归还

协议双方同意，在披露方的要求下，接收方将在收到要求后的十（10）个工作日内归还或销毁（如果是电子存储信息，则永久删除）对方机密和专有信息的所有实施方案，以及这些机密和专有信息的所有副本（授权或未经授权）。

5. Governing Law and Dispute Resolution

This agreement shall be governed by the laws of the People's Republic of China. In case of a dispute, the parties may resolve a contractual dispute through settlement or mediation. Where the parties do not wish to, or are unable to, resolve such dispute through settlement or mediation, the dispute may be submitted to the relevant arbitration institution for arbitration in the PRC or Singapore.

5. 管辖法律和争端解决

本协议应受中华人民共和国法律的管辖。如有争议，双方可通过和解或调解解决合同争议。如果双方不愿意或无法通过和解或调解解决此类争议，可将争议提交给相关仲裁机构，在中国或新加坡进行仲裁。

6. Language

This Agreement is written in the English and Chinese languages. In the event of a dispute, the English language shall prevail.

6. 语言

本协议以英文和中文书写。如有争议，以英文为准。

7. Entire Agreement

This document constitutes the entire agreement between the parties with respect to the subject matter addressed herein. This Agreement may not be amended or modified except by a writing signed by both parties.

IN WITNESS WHEREOF, this Agreement has been duly executed by the parties hereto as of the latest date set forth below.

7. 全部协议条款

本文件构成了双方之间关于本文所涉及的主题事项的全部协议。除非有双方签署的书面文件，否则本协议不得修正或修改。

本协议已由双方在下文所述的最后日期正式签署，以资证明。

Company name “Party A”
中文公司名 “甲方”

Address 地址:

Signature/Stamp 签字/盖章:

Date 日期:

Aung Crown Clothing Group Limited, **“Party B”**

深圳昂冠实业有限公司“乙方”

Address 地址:

No.30, Xinmuxinyuan Industrial Zone, Pinghu Street, Longgang District, Shenzhen, China 518111

深圳市龙岗区平湖街道新木新园工业区 30 号

Signature/Stamp 签字/盖章:

Date 日期: